Proposed Amendments to Appear
on the November 3, 2026 General Election Ballot
(ballot text)

Constitutional Amendment 1:

"PROPOSING AN AMENDMENT TO ARTICLE 4, SECTION 22 OF THE CONSTITUTION OF NEW MEXICO TO REQUIRE THE GOVERNOR TO PROVIDE VETO MESSAGES ON ALL BILLS VETOED IN WHOLE OR IN PART AND TO PROVIDE THAT ALL BILLS PASSED BY THE LEGISLATURE AND NOT ACTED ON BY THE GOVERNOR WILL BECOME LAW."

Constitutional Amendment 2:

"PROPOSING TO AMEND ARTICLE 7, SECTION 1 OF THE CONSTITUTION OF NEW MEXICO TO REMOVE THE REQUIREMENT THAT SCHOOL ELECTIONS BE SEPARATE FROM PARTISAN ELECTIONS."

Constitutional Amendment 3:

"PROPOSING AN AMENDMENT TO ARTICLE 12, SECTION 13 OF THE CONSTITUTION OF NEW MEXICO TO ESTABLISH NOMINATING COMMITTEES TO PROVIDE LISTS OF NOMINEES TO THE GOVERNOR FOR APPOINTMENT OF NONSTUDENT MEMBERS TO THE BOARDS OF REGENTS OF STATE EDUCATIONAL INSTITUTIONS; PROVIDING THAT STUDENT MEMBERS OF BOARDS OF REGENTS SHALL BE APPOINTED FROM A LIST PROVIDED BY AN ELECTED STUDENT GOVERNING BODY OF THE INSTITUTION; PROVIDING THAT, EXCEPT FOR A STUDENT MEMBER, MEMBERS OF THE BOARDS OF REGENTS SHALL NOT HAVE CHANGED THEIR POLITICAL PARTY REGISTRATION IN THE TWELVE MONTHS PRECEDING APPOINTMENT."

Constitutional Amendment 4:

"PROPOSING TO AMEND ARTICLE 4, SECTION 10 OF THE CONSTITUTION OF NEW MEXICO TO ALLOW LEGISLATIVE COMPENSATION THAT IS LIMITED TO THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO, TO REQUIRE LEGISLATIVE COMPENSATION TO BE REDUCED IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO FALLS, TO ALLOW LEGISLATIVE COMPENSATION TO BE INCREASED ONLY IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO RISES AND TO PROVIDE FOR DELAYED IMPLEMENTATION."

General Information

New Mexico voters will be asked in 2026 to consider four proposed amendments to the state's constitution. Constitutional Amendment 1 would eliminate the governor's ability to pocket veto bills passed by the legislature, Constitutional Amendment 2 would allow school elections to be held at the same time as partisan elections, Constitutional Amendment 3 would establish nominating committees to provide lists of names to the governor to select members of boards of regents of state educational institutions and Constitutional Amendment 4 would allow salaries for state legislators. All four amendments will appear on the November 3, 2026 general election ballot.

The Constitution of New Mexico provides that the legislature, by a majority vote of all members elected to each house, may propose amendments revising the constitution and that proposed amendments must then be submitted to the voters of the state for approval. A proposed amendment becomes part of the state's constitution if a majority of the votes cast in an election on the proposition is cast in its favor, unless the proposed amendment affects one of the sections for which a three-fourths' majority is required. (This year's proposed constitutional amendments do not affect one of those sections and, thus, need only a simple majority vote to be approved.) Proposed constitutional amendments become effective upon approval by the voters unless an effective date is provided within the text of the proposed amendment.

This publication contains a summary and the full text of the joint resolutions proposing the amendments, as well as background information and summaries of arguments for and against the passage of the amendments. New language that is proposed for insertion in the full text of the joint resolutions is shown by underscoring, and language that is proposed for deletion is shown within brackets.

While the full text of the proposed amendments appears in this publication, the title, which appears in capital letters at the top of each joint resolution, is the *only* language that will appear on the ballot.

Disclaimer

The arguments for and against the proposed constitutional amendments in this publication do not necessarily reflect legislative deliberations undertaken at the time of the passage of the proposed amendments. They represent suggestions from the Legislative Council Service staff of arguments in support of and in opposition to the proposed amendments. No claim is made for the validity or consistency of these arguments. This is not an exhaustive list of all cogent and valid arguments. No attempt has been made to provide the same number of arguments for or against a particular

HOUSE JOINT RESOLUTION 2
57TH LEGISLATURE - STATE OF NEW MEXICO - FIRST SESSION, 2025

A JOINT RESOLUTION
PROPOSING AN AMENDMENT TO ARTICLE 4, SECTION 22 OF THE CONSTITUTION OF NEW MEXICO TO REQUIRE THE GOVERNOR TO PROVIDE VETO MESSAGES ON ALL BILLS VETOED IN WHOLE OR IN PART AND TO PROVIDE THAT ALL BILLS PASSED BY THE LEGISLATURE AND NOT ACTED ON BY THE GOVERNOR WILL BECOME LAW.

BE IT RESOLVED BY THE LEGISLATURE OF THE STATE OF NEW MEXICO:

SECTION 1. It is proposed to amend Article 4, Section 22 of the constitution of New Mexico to read:

"A. Every bill passed by the legislature shall, before it becomes a law, be presented to the governor for approval. If [~~he~~] the governor approves, [~~he~~] the governor shall sign it and deposit it with the secretary of state; [~~otherwise, he~~] if the governor disapproves, the governor shall veto it and return it to the house in which it originated [~~with his objections, which shall~~] to be entered at large upon the journal; and such bill shall not become a law unless thereafter approved by two-thirds of the members present and voting in each house by yea and nay vote entered upon its journal. Any bill not returned by the governor within three days, Sundays excepted, after being presented to [~~him~~] the governor, shall become a law, whether signed by [~~him~~] the governor or not, unless the legislature by adjournment prevent such return.

B. Every bill presented to the governor during the last three days of the session shall be approved or vetoed by [~~him~~] the governor within twenty days after the adjournment and shall be by [~~him~~] the governor immediately deposited with the secretary of state. Unless [~~so approved and signed~~] vetoed by [~~him~~] the governor, such a bill passed by the legislature shall [~~not~~] become a law.

C. The governor may in like manner approve or disapprove any part or parts, item or items, of any bill appropriating money, and such parts or items approved shall become a law, and such as are disapproved shall be void unless passed over [~~his~~] the governor's veto [~~as herein provided~~].

D. Any veto of a bill in whole or in part by the governor shall include a substantive explanation for the veto. The explanation for the veto shall be returned with the bill to the house in which the bill originated or deposited with the bill with the secretary of state, as

Note: underscored material = new language proposed for insertion [~~bracketed material~~] = existing language proposed for deletion

herein provided."

SECTION 2. The amendment proposed by this resolution shall be submitted to the people for their approval or rejection at the next general election or at any special election prior to that date that may be called for that purpose.

Note: underscored material = new language proposed for insertion [~~bracketed material~~] = existing language proposed for deletion

SUMMARY of Proposed Constitutional Amendment 1

In 2025, the New Mexico Legislature passed Constitutional Amendment 1, which, if adopted, would amend Article 4, Section 22 of the Constitution of New Mexico to remove what has been referred to as the "pocket veto". The pocket veto occurs when, after the adjournment of the legislature, the governor does not sign a bill that was presented to the governor during the last three days of session. By not acting on the bill, the bill does not become law. Constitutional Amendment 1 proposes to flip this dynamic. If this proposed amendment is approved by voters, a bill presented to the governor during the last three days of the session would by default become law if the governor does not issue a veto message within 20 days after the legislature's adjournment. In order to veto a bill passed by the legislature, the governor would be required to provide a written, substantive explanation for the veto.

BACKGROUND AND INFORMATION

The legislature meets once a year for 60 days in odd-numbered years and 30 days in even-numbered years. During these sessions, the legislature introduces, debates and passes bills to become law. After a bill passes through both chambers of the legislature, the bill heads to the governor's desk. The governor can either sign the bill, thereby enacting it into law, or the governor can veto the bill, either through a written declaration or through a pocket veto after the session adjourns if the bill was presented to the governor during the last three days of session. From 2014 through 2026, governors have pocket vetoed 166 bills and vetoed 180 bills.

Article 4, Section 22 of the Constitution of New Mexico has had only one minor change since its enactment. In 1953, voters approved a measure that extended the deadline for the governor to sign a bill that was presented to the governor during the last three days of session from six days to 20 days. While not affected by this proposed Constitutional Amendment 1, this section of the constitution also allows the legislature to override a governor's veto by a two-thirds' majority vote of both chambers of the legislature.

▸ ARGUMENTS FOR

1. Provides greater transparency to the public and the legislature regarding why a governor vetoed a bill.

With the ability to pocket veto a bill, the governor can veto a bill passed by both chambers of the legislature without an explanation. This can leave the public and the legislature in the dark about what objections the governor had and does not provide information on how the bill might be reintroduced in the future in a manner that the governor would sign. By using the pocket veto, the governor is able to avoid explaining the governor's position on potentially politically sensitive pieces of legislation. Eliminating the pocket veto would ensure that a substantive explanation is given by the governor for the veto, the public knows the opinion of the governor on the legislation and the legislature understands how to address the governor's concerns.

2. Potentially brings greater balance among the branches of government.

The governor's ability to pocket veto a bill gives the governor great power over the enactment of laws passed by the legislature. With the elimination of the pocket veto, the legislature would have an increased chance of passed bills becoming law, especially for a politically fraught bill, because to veto a bill, the governor would have to be intentional about the veto and provide a reason. The proposed amendment would also provide an avenue for the judicial branch to weigh in on whether the governor has provided a "substantive explanation" for the veto if the explanation is challenged.

ARGUMENTS AGAINST

1. <u>This proposed amendment is unnecessary and could be overly burdensome.</u>

The proposed amendment is unnecessary because the legislature currently can require the governor to provide a reason for vetoing a bill by presenting the bill to the governor before the last three days of a session. The legislature also has the option to override a governor's veto, regardless of the governor's rationale for pocket vetoing a bill. Further, with only 20 days to act after the adjournment of the legislature, providing a written, substantive explanation for every bill to be vetoed could be overly burdensome and create a logjam of work in the executive branch in the short time after session that the governor has to consider legislation for signature or veto. This could result in "bad bills" becoming law because the governor ran out of time before a veto message could be written.

2. <u>The requirement to provide a "substantive explanation" is undefined.</u>

To veto a bill, the governor would be required to provide a "substantive explanation" for the veto, but there is nothing in the proposed amendment to indicate what that would entail. This could lead to an increase in litigation between the legislative and executive branches at a cost to the taxpayers. Additionally, the litigation could delay the enactment of a bill, leaving the public in limbo as to whether or when the law will be in effect.